

Shiv Raj Singh v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 27 January 2010 · WRIT - C No. 2074 of 2010 · **Writ disposed of; petitioner directed to avail Clause 6.5.**

HEADNOTE

A consumer disputing electricity bills in writ proceedings was relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court did not examine the bills on merits and disposed of the petition with liberty to invoke that objection remedy.

FACTUAL SUMMARY

Shiv Raj Singh filed Writ-C No. 2074 of 2010 in the Allahabad High Court against the State of Uttar Pradesh and others, disputing electricity bills. The petition was heard by a Division Bench on 27 January 2010. Counsel for the respondents pointed out that a Supply Code remedy was available for such a billing dispute. The order records no billing period, meter particulars, or amount in controversy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — objection remedy under Clause 6.5

HOLDING

Where a consumer disputes electricity bills by writ petition, the High Court will dispose of the petition by directing the petitioner to avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, rather than adjudicate the bills on merits. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer disputing electricity bills in writ proceedings was relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court did not examine the bills on merits and disposed of the petition with liberty to invoke that objection remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE DISPUTED ELECTRICITY BILLS

Petition disposed of solely by relegating the petitioner to Clause 6.5; no finding on the bills. ¶ 1